

Smt. Rekha Singh v. State of U.P.

Allahabad High Court · Division Bench · 28 July 2021 · WRIT - C No. - 17199 of 2021 · **Writ disposed; clause 6.5 complaint directed with Rs. 30,000 deposit.**

HEADNOTE

A consumer disputing an electricity bill as exaggerated has an adequate remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005 to object and seek correction. Even where the licensee's own check-meter enquiry has shown a large excess in recorded consumption, the writ court will not decide the bill on merits and may dispose of the petition by directing a time-bound clause 6.5 complaint, a specified deposit, and a reasoned order after hearing.

FACTUAL SUMMARY

Smt. Rekha Singh, a widow, challenged recovery of Rs. 3,40,104 as an exaggerated electricity demand. On her earlier complaint the respondents had installed a check meter at her premises. Their own enquiry found that the recorded meter reading was about 83% in excess of the check-meter reading. She approached the Allahabad High Court in writ against the State and the power corporation. The Court heard her counsel and counsel for the Power Corporation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an adequate remedy to file an objection seeking correction of a disputed electricity bill. Where a preliminary enquiry has already revealed discrepancy between the billed meter reading and a check meter, the writ court will not quantify the demand; the consumer may file a clause 6.5 complaint within two weeks (here with a deposit of Rs. 30,000), and the designated respondent must pass a reasoned order within two weeks thereafter after hearing the parties. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ disposed because clause 6.5 was held an adequate remedy for bill correction, with directions to file a complaint and obtain a reasoned order rather than a merits adjudication of the demand. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated clause 6.5 as the statutory path to object to and seek correction of the Rs. 3,40,104 demand. ¶ 1

meter-reading-dispute-clause-6.5 A check-meter enquiry showing about 83% excess recorded consumption was sent to clause 6.5 rather than decided in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 3,40,104 WAS EXAGGERATED AND WHAT CORRECTED AMOUNT, IF ANY, WAS PAYABLE IN LIGHT OF THE CHECK-METER ENQUIRY

Left to respondent no. 4 on the petitioner's clause 6.5 complaint after deposit of Rs. 30,000. ¶ 1